

# **GRANADA v. BURGESS et al**

**21CV45760**

## **PLAINTIFF'S DISCOVERY MOTIONS**

This is a construction defect and breach of contract dispute involving a residential roofing project. Before the Court are the following discovery motions, directed at co-defendant Level 1 Roofing: (1) plaintiff's motion to compel initial responses to Form Interrogatories; (2) plaintiff's motion to compel initial responses to requests for production of documents; and (3) plaintiff's motion to deem admitted matters contained in requests for admissions. Plaintiff also seeks monetary sanctions. There is no opposition on file.

First, the discovery motion is technically deficient in that it combines three distinct motions in one. (See CCP §1003.) Pursuant to Govt Code §70617, plaintiff was required to tender \$60 for each motion seeking an order even if the motions are heard together. In other words, although one commingled memorandum is permissible (CRC 3.1112(c)), counsel still had to tender three filing fees. Plaintiff is directed to the clerk's office to pay the requisite additional \$120 in filing fees.

As for the motions themselves, service is defective. The proof of service on the motion indicates service upon Level 1 Roofing's Chief Executive Officer at two different mail addresses (Murietta and Loomis). Pursuant to CCP §1015, "in all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party." Although counsel for Level 1 Roofing did secure an order allowing it to withdraw its representation of Level 1 Roofing just six days prior to the pending motion being served, Carno Law Group did not file the required proof of service and as such is still counsel of record for Level 1 Roofing. (See Order Paragraph 5.a. and CRC 3.1362(e).)

Finally, there is a disconnect regarding service of the discovery requests themselves. The papers reflect that the discovery was served on Carno Law Group, as would be expected. There is further evidence in the papers that Carno Law Group was working on draft responses for, and communicating with, the client in early 2023. However, the law firm's motion to withdraw was based in part on a lack of regular contact with defendant. The sum total of all this is that this Court will require evidence that Level 1 Roofing actually knew about the discovery before imposing sanctions. An order compelling a response is warranted, but sanctions (or the order deeming admitted) on the present record are unjust.

Motion GRANTED in part. Defendant Level 1 Roofing is hereby ordered to serve verified *answers* to plaintiff's form interrogatories, response and production of

documents, and responses to the requests for admissions, without objections, within 30 days of service of this order. The order shall be mail-served on counsel of record (Carno Law Group) and personally served on Level 1 Roofing. The request for monetary sanctions is denied without prejudice at this time, but can be reasserted if responses are not forthcoming.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

## LOPEZ v. ROSE

23CF14110

### PLAINTIFF'S APPLICATION FOR WRIT OF POSSESSION

This is a civil action for conversion of personal property between former romantic partners and cohabitators. Before the Court is plaintiff's application for a writ of possession for his French bulldog. There is a related action between the parties (22DV46201).

Pursuant to Code of Civil Procedure §§ 512.060 and 515.010, a writ of possession "shall" issue if (1) the plaintiff has established the probable validity of its claim to possession of tangible property and (2) the plaintiff has provided an undertaking of not less than twice the value of defendant's interest, if any, in the property. To establish *probable validity*, plaintiff must show that it is "more likely than not" that the plaintiff will obtain a judgment against the defendant on the possession claim. (See *People v. Superior Court* (2002) 27 Cal.4<sup>th</sup> 888, 919.) To meet this standard, the plaintiff must show (1) that it is entitled to immediate possession of the property and (2) that defendant's continued possession is wrongful. (CCP §512.010(b)(1)-(2); see *Cassel v. Kolb* (1999) 72 Cal.App.4<sup>th</sup> 568, 575-576.) In addition, if the property is held at a private place, plaintiff must also establish probable cause to believe that the property is in fact located at the private place. (CCP §512.010(b)(4).)

Although plaintiff makes a compelling showing that the dog belongs to plaintiff and that defendant's continued possession is unlawful, that is not the end of the analysis. On 08/02/22, this Court issued a Temporary Restraining Order in 22DV46201 against plaintiff, obligating him to move out of the home at 5393 Spur Road, Angels Camp, to have no contact with defendant, and to stay 150 yards away from the subject dog, as this Court gave defendant sole possession, care and custody of the dog. The order was issued ex parte, without hearing plaintiff's side. Although plaintiff filed a response in that case explaining why he contended the dog belonged to him, that issue has yet to be adjudicated at an evidentiary hearing (currently scheduled for 5/31/23), resulting in repeated orders extending the TRO. Additionally, in another related case (22CH46222), plaintiff's mother secured a temporary civil harassment restraining order against defendant, prohibiting defendant from coming within 150 yards of the same residence, and further to stay away from *Janice's French Bulldog* ... another dog that the Court in 22DV46201 gave to defendant (as opposed to plaintiff).

Both 22DV46201 and 22CH46222 are set for an evidentiary hearing on 05/31/23. It seems to this Court that the most orderly method for resolving plaintiff's claimed possessory interest in the dog is to address the matter in the trial of those cases,